

# HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN SRI LANKA

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## Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Sri Lanka, grounded in the approval system under the National Environmental Act, the Project Approving Agency structure, the mandatory public comment period, and the public trust doctrine established by the Supreme Court

*This guide uses the Sri Lankan legal terms you will actually encounter (the prescribed project, the IEE and the EIA, the Project Approving Agency, the Terms of Reference, the Technical Evaluation Committee, the fundamental rights application and the writ application, the public trust doctrine, and so on), each explained in plain language where it first comes up. Sri Lanka's environmental legislation has been amended several times and further amendment has been proposed; the core mechanics below apply, but always check the current position.*

**A note on terms.** Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up. Sinhala and Tamil terms are given with a short English gloss.

**A note on money.** Budgets in this guide are in Sri Lankan rupees (LKR). Every figure is indicative — Sri Lankan community campaigns are frequently run at low cost, because the decisive routes are a written objection and a court application, and the country has environmental organisations that litigate for communities. Treat the ranges as a menu, not a bill.

**A note on timing.** Sri Lanka's most important deadlines are short and unforgiving: a **30-day** public comment window, and — for a fundamental rights application — **one month** from when you became aware of the infringement. Read Section 4 before anything else if a project is already announced.

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## TABLE OF CONTENTS

1. **INTRODUCTION & FRAMEWORK** — Why this matters, how this works, what to realistically expect
2. **HOW THE SYSTEM WORKS** — Who decides, how a decision is made, and the words you'll need
3. **QUICK REFERENCE: SUCCESS RATES** — Effectiveness by step and combined, with real-world grounding
4. **STEP 1: TARGET IDENTIFICATION** — What you're fighting, who controls it, when the decision is final
5. **STEP 2: DOCUMENTATION** — How to prove harm (three documentation layers)
6. **WHAT TO GATHER, AND WHERE TO FIND IT** — The records that win cases, and how to get them
7. **STEP 3: BUILDING LOCAL OPPOSITION** — How to organise (Foundation → Public Launch → Coalition → Escalation)
8. **STEP 4: LEGAL CHALLENGES** — Objections, the approval, and the courts
9. **TURNING YOUR EVIDENCE INTO ARGUMENTS** — Matching each fact to the ground that wins
10. **STEP 5: MEDIA STRATEGY** — How to generate coverage
11. **EMAILS & LETTERS** — Ready-to-use messages communities can copy and send
12. **IF YOU HAVE LITTLE TIME OR FEW RESOURCES** — The rapid-fire version
13. **WHEN THE SYSTEM IS TILTED** — When opposition faces systemic barriers
14. **WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED** — Reading capture actor by actor
15. **INTEGRATION & TIMELINE** — How all five steps work together over a 12-month campaign
16. **FINAL ASSESSMENT** — Realistic outcomes, when to continue, when to reassess

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## INTRODUCTION & FRAMEWORK

### Why This Matters

Community action changes project outcomes in Sri Lanka — and this is a country whose Supreme Court has held, in plain terms, that the State holds the nation's natural resources **in trust for the people**. Under the **National Environmental Act**, projects designated as **prescribed projects** cannot proceed without environmental approval, obtained through either an **Initial Environmental Examination (IEE)** or, for more complex projects, a full **Environmental Impact Assessment (EIA)**. Where an EIA is required, the report must be **open for public inspection and comment for a mandatory 30 days**, advertised in the newspapers, and made available at the **Central Environmental Authority**, the

relevant **Divisional Secretariat**, and the **Pradeshiya Sabha** — and any comments received must be **sent to the project proponent for response**. A **public hearing** may be held where the approving agency considers it appropriate in the public interest.

Behind that administrative process sits the country's real distinction. In the **Eppawala phosphate case**, residents of the affected area — cultivators, landowners, and a temple's chief monk — challenged a proposed mineral investment agreement with a foreign mining company. The **Supreme Court** held that it had jurisdiction to hear the matter notwithstanding the Government's argument that the State, not the court, was the trustee of natural resources; that the petitioners had standing, and were **not disqualified because the case was public interest litigation**; that they could join in a single application; and that the petition was **not time-barred because it was filed within one month of the petitioners learning of the agreement from a newspaper report**. Applying **sustainable development, the public trust doctrine, and intergenerational equity**, the Court declared an **imminent infringement** of the petitioners' fundamental rights. Later, the Court of Appeal held in a wetland-filling case that protecting environmentally sensitive areas is a **public trust duty of the State**.

That is a genuinely powerful combination. The honest counterweight is real. The **IEE route carries no public comment right under the National Environmental Act** — a project can be approved on an IEE with little or nothing shared with the public — and proposals to change that have not been carried through. **Public hearings are discretionary**, not guaranteed. The **administrative appeal against a refusal belongs to the project proponent**, not to objectors, so communities dissatisfied with an approval must go to court rather than appeal. Notice is by newspaper, which in practice reaches town readers more reliably than affected villages. And Sri Lanka has seen very large projects — reclamation, highways, quarrying, sand mining, and clearance of forest and wetland — proceed despite sustained objection.

**What "winning" realistically means.** Rarely a national policy reversal. More often: **approval refused or conditioned**; an **EIA required where an IEE was proposed**, which unlocks the public comment right; a **public hearing granted**; conditions written into the approval and then enforced; unlawful filling, clearing, or quarrying **restrained by court order**; a project delayed until its economics change; or a **precedent set** under the public trust doctrine that later communities use. Each has happened. The realistic goal is to intervene inside the 30-day window with a serious objection, force the process to be done properly, and be ready to go to court quickly if it is not.

## The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — pin down whether the project is prescribed, whether an IEE or EIA applies, which agency is the PAA, and the deadlines.
2. **Documentation** — build an evidence record strong enough for a written objection, a technical evaluation, and a court application.
3. **Local opposition** — organise the affected community so objections arrive in volume and with credibility.
4. **Legal challenges** — use the comment period, the hearing request, and the courts' fundamental rights and writ jurisdictions.
5. **Media strategy** — generate coverage that raises the political cost and reaches the organisations that litigate.

No single step wins alone. In Sri Lanka the combination that works is **a serious objection inside the window, backed by evidence, with a court application ready if approval issues anyway**.

## Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Sri Lanka's system gives no comment right on an IEE, leaves hearings to discretion, gives the appeal to the developer, and notifies by newspaper. Assessing that honestly helps you choose the right tools: the strongest routes are to **contest the IEE/EIA classification**, to **use the 30-day window properly**, to **request a public hearing in writing**, and to be ready to move to the **Supreme Court or the Court of Appeal** on public trust and fundamental rights grounds — remembering the **one-month** limit. A tilt changes which lever works; it does not remove them all. Section 13 deals honestly with tilted situations.

## How to use this guide

Read Sections 1–3 once, and Section 4 immediately if a project is already announced, because the deadlines are short. Sections 5–8 run in parallel. Sections 9–11 are reference material. Section 12 pulls it onto one timeline; Section 13 helps you decide, honestly, whether and how long to keep going.

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# HOW THE SYSTEM WORKS

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Before you can fight a project you have to know who decides it, how, and the words the system uses. Sri Lanka is a unitary republic with **provinces, districts, Divisional Secretariats**, and local authorities including **Pradeshiya Sabhas**, Urban Councils and Municipal Councils. Environmental approval rests chiefly on the **National Environmental Act No. 47 of 1980**, as amended in **1988** — which introduced environmental assessment — and in **2000**, together with sector statutes including the **Coast Conservation and Coastal Resource Management Act**, the **Fauna and Flora Protection Ordinance**, and, in one province, the **North Western Province Environmental Statute**.

## The bodies that decide — and what each one controls

**The Central Environmental Authority (CEA).** The central environmental regulator, which administers the National Environmental Act, leads the assessment system, and — importantly — **designates which agency will be the Project Approving Agency for each project**. Where the approving agency is not the CEA itself, the CEA's **concurrence is required before a decision is made**.

**The Project Approving Agency (PAA).** Sri Lanka's distinguishing feature. Rather than a single environmental regulator deciding everything, the assessment process is run through **designated approving agencies**, typically the line agency responsible for that sector. A **single PAA is appointed for each project by the CEA**. The PAA sets the **Terms of Reference**, manages the study, runs the public comment stage, appoints the evaluation committee, and **grants or refuses approval**. Identifying your PAA is therefore the first practical task: objections filed with the wrong body achieve nothing.

**The Technical Evaluation Committee (TEC).** Appointed by the PAA to evaluate the report and recommend, on which basis the PAA decides and sets conditions.

**Sector and area authorities.** In the **coastal zone**, the coast conservation authority; for protected areas and wildlife, the wildlife authorities and Forest Department; and local authorities license construction and land use.

**The Divisional Secretariat and the Pradeshiya Sabha.** Where the report is deposited for public inspection, and the institutions through which communities usually engage.

**The courts.** The **Supreme Court** exercises **fundamental rights jurisdiction** and the **Court of Appeal writ jurisdiction** over public authorities. Because objectors have no administrative appeal, these are the community's route.

**Which one is "yours"?** Ask: is this a **prescribed project**? Does it require an **IEE or an EIA**? Which agency has been designated **PAA**? Is the site in the **coastal zone**, a protected area, or the North Western Province — because the statute that applies changes your rights. Pinning this down is Step 1.

## How a decision is actually made — the journey of a project

Under the National Environmental Act the path is roughly:

1. **Preliminary information and screening.** The proponent submits preliminary information about the project to the CEA to initiate the process. The project is assessed as a **prescribed project** and assigned either an **IEE** — for projects without complex environmental issues — or a full **EIA**, for those with them. **This classification decides how much public process you get**, and is therefore the most consequential early decision in the whole system.
2. **Terms of Reference and scoping.** The PAA sets the **Terms of Reference** for the study, which must be conveyed to the proponent **within 30 days** of receipt of the preliminary information, and it may take the views of the public into account in doing so. Narrow terms of reference produce a narrow study, so this is a point worth trying to influence.
3. **The report.** The proponent prepares the IEE or EIA.
4. **Public inspection and comment — for EIAs.** Where an EIA has been prepared and the PAA is satisfied with it, the PAA must **give notice by newspaper inviting the public to inspect the report and comment within 30 days**. Copies are kept for inspection at the **CEA library, the relevant Divisional Secretariat, and the Pradeshiya Sabha**, and members of the public may obtain copies on payment of copying charges. **Comments received are sent to the proponent for response**.
5. **The IEE gap.** Under the National Environmental Act, **IEE reports are not opened for public comment** — they go straight to technical evaluation, though an IEE is treated as a public document for evidentiary purposes. **But this differs by statute:** under the **Coast Conservation and Coastal Resource Management Act** and the **North Western Province Environmental Statute**, IEEs **are** open for public comment. So whether you have a say on an IEE depends on which law governs your project — a decisive question to ask at the outset.
6. **Public hearing.** The PAA **may** hold a hearing "where it considers it appropriate in the public interest". It is

discretionary, so it must be **requested, in writing, with reasons**.

7. **Evaluation and decision.** The **TEC** evaluates and recommends; the PAA decides, and where the PAA is not the CEA it must obtain the **CEA's concurrence**. Approval carries **conditions**, and the approval is **published**.
8. **Appeal.** If approval is refused, the **project proponent** may appeal to the **Secretary to the Ministry** responsible for environment. Note the asymmetry: **objectors have no equivalent appeal**, which is precisely why the courts matter here.

## The rulebook — the policies that decide the outcome

- **The National Environmental Act and the EIA regulations.** Was the project correctly classified as requiring an EIA rather than an IEE? Were the Terms of Reference adequate? Was the 30-day notice properly given? Were comments considered and answered? Were conditions lawfully imposed — and are they being met?
- **The Constitution. Fundamental rights** under Chapter III, invoked in the Supreme Court under **Article 126**, and the **writ jurisdiction** of the Court of Appeal over public authorities. The Eppawala case established that residents may bring such an application even where the interest is shared with the wider public.
- **The public trust doctrine.** The Supreme Court applied **public trust, sustainable development, and intergenerational equity** to natural resources, and the Court of Appeal has held that protecting environmentally sensitive areas is a **public trust duty of the State**. These are usable arguments, not decoration.
- **Sector statutes.** The coastal, wildlife, and forest statutes carry their own permits and, in the coastal case, a **wider public comment right**.

## Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. Sri Lanka has pursued large infrastructure, tourism, port, highway and housing development, often with foreign financing and under fiscal pressure; approving agencies are frequently the very line ministries that promote the sector they assess; the assessment is commissioned and paid for by the proponent; and the IEE route offers a faster path with no public comment attached. None of this is inherently unlawful, but it explains the default lean toward approval — and why the community's decisive levers are the **classification question**, the **comment window**, and the **courts**.

## The overseers — who watches the decision-makers

- **The Supreme Court** — fundamental rights jurisdiction, and the source of the public trust jurisprudence.
- **The Court of Appeal** — writ jurisdiction over public authorities, used to restrain unlawful filling, clearing, and construction.
- **The CEA** — which must concur in decisions made by other approving agencies, and which enforces standards and licences.
- **The Auditor-General and parliamentary oversight committees** — public money and administrative performance.
- **Environmental litigation organisations** — with decades of experience in exactly these cases, and the single most valuable ally a community can find.

Naming and using the right body matters: in Sri Lanka the most consequential early judgment is usually **whether the project should be on the EIA track rather than the IEE track**, because that determines whether the public has any right to be heard at all.

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## QUICK REFERENCE: SUCCESS RATES

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These figures are **directional, not guarantees** — patterns across documented Sri Lankan and comparable campaigns, not a controlled study. Use them to prioritise effort. The most important lesson for Sri Lanka sits inside the table: two things decide most campaigns — **whether the project is on the EIA track**, because that is what gives you a voice at all, and **whether you can get to court within the time limits**, because objectors have no administrative appeal.

### Individual Step Success Rates

| Approach           | Success Rate | Timeline   | Cost (LKR) | What "Success" Means       |
|--------------------|--------------|------------|------------|----------------------------|
| Documentation only | 5-10%        | 1-3 months | low        | Basis for every other step |

|                                                       |        |             |              |                                                                                |
|-------------------------------------------------------|--------|-------------|--------------|--------------------------------------------------------------------------------|
| <b>Local opposition only</b>                          | 20-30% | 6-18 months | low          | Political and local pressure                                                   |
| <b>Written objections in the 30-day window</b>        | 20-35% | 1 month     | low          | On record; conditions or refusal                                               |
| <b>Challenge to IEE/EIA classification</b>            | 25-45% | 1-6 months  | low          | <b>EIA required; public comment unlocked</b>                                   |
| <b>Request for a public hearing</b>                   | 20-35% | 1-3 months  | low          | Hearing granted; evidence heard                                                |
| <b>Writ application (Court of Appeal)</b>             | 30-50% | 6-36 months | moderate     | Approval quashed; works restrained                                             |
| <b>Fundamental rights application (Supreme Court)</b> | 30-50% | 6-24 months | moderate     | Imminent infringement declared; project stopped                                |
| <b>Complaint on breach of conditions</b>              | 20-35% | 3-12 months | low          | Enforcement; licence action                                                    |
| <b>Media only</b>                                     | 15-25% | 1-6 months  | low          | Public knows; pressure rises                                                   |
| <b>Docs + local opposition + media</b>                | 30-45% | 6-18 months | low-moderate | Pressure plus a stronger case                                                  |
| <b>All steps combined</b>                             | 50-65% | 9-36 months | moderate     | Approval refused or quashed, works restrained, project redesigned or abandoned |

**Key insight:** all steps together are far more effective than any single one — and the Sri Lankan multiplier is the **court route**, because the constitutional jurisprudence is strong and standing is not a barrier. The distinctive advantages are the **public trust doctrine**, a Supreme Court that has held public-interest petitioners are not disqualified, the **mandatory 30-day comment window** on EIAs, and a well-established environmental bar. The distinctive disadvantages are the **absence of any public comment right on an IEE** under the principal Act, **discretionary hearings**, an **appeal available only to the developer**, and notice given by newspaper.

*A note on legal cost: objections, hearing requests, and complaints cost almost nothing. Court applications cost more, but Sri Lankan environmental organisations have run landmark cases for affected communities, and a fundamental rights application is a comparatively accessible procedure. The costs that matter most are expert evidence where the case turns on hydrology, coastal processes, or ecology.*

## Effectiveness Visualization

SUCCESS PROBABILITY (approval refused or quashed, works restrained, project redesigned or abandoned)

FAVOURABLE SCENARIO (EIA track, clear procedural defect or sensitive area, organised community, litigation support engaged):

All steps combined: 50-65%  
 FR or writ application: 30-50%  
 Classification challenge: 25-45%  
 Single step: 5-35%

TILTED SCENARIO (IEE track with no comment right, politically backed project, late discovery):

All steps combined: 30-45%  
 Court application: 25-40%  
 Local + media: 15-30%  
 Single step: 3-15%

**How to read this honestly.** In Sri Lanka the strongest positions are **procedural and constitutional**: a project routed through an IEE when its complexity requires an EIA; Terms of Reference that omit the water body, the wetland, or the villages downstream; notice that did not genuinely reach the affected community; comments submitted and never answered; a refusal to hold a hearing where the public interest plainly warranted one; or a project affecting an environmentally sensitive area, where the State's **public trust duty** is engaged. Where you can show one of these and reach the court in time, the odds are genuinely good. What is much harder is a late challenge to a project already approved and under construction, or a project lawfully processed on an IEE where you had no right to comment at all. Judge success accordingly, and note that the single most valuable thing you can do early is **get the project onto the EIA track**.

## Step Importance Ranking (When All Combined)

1. **Legal challenges** — first in Sri Lanka, because objectors have no administrative appeal and the constitutional jurisprudence is strong.
2. **Documentation** — the evidence that makes an objection and a petition serious.
3. **The 30-day objection window** — cheap, mandatory where an EIA applies, and the source of most procedural grounds.
4. **Local opposition** — supplying volume, petitioners, and local credibility.
5. **Media** — which reaches the organisations that litigate and raises the political cost.

Winning Sri Lankan campaigns combined a well-evidenced objection filed inside the window, a documented procedural defect, and a court application brought in time with experienced support.

## What Sri Lankan Campaigns Actually Show

A few patterns recur. **The courts will hear communities** — in the **Eppawala** case the Supreme Court held that it had jurisdiction notwithstanding the argument that the State rather than the court was trustee of natural resources; that the petitioners, residents and cultivators of the affected area, **had standing and were not disqualified because the case was public interest litigation**; that several petitioners could **join in one application**; and that the petition was **not time-barred, having been filed within one month of their learning of the agreement from a newspaper report**. **The doctrine is substantive** — the Court applied **sustainable development, public trust and intergenerational equity**, observing that a non-renewable resource extracted on those terms would not serve future generations, and criticising contractual arrangements that would have denied the public any right to object; it declared an **imminent infringement** of fundamental rights. **The duty has been extended** — the Court of Appeal, in litigation over the filling of the Muthurajawela wetlands, held that protecting environmentally sensitive areas is a **public trust duty of the State**. **Evidence quality matters** — courts have criticised assessments for inadequate attention to monitoring measures, which tells you where to aim a technical critique. **And the process has a hole in it** — because IEEs carry no public comment right under the principal Act, projects can be approved with little shared publicly, a gap that proposed amendments have not closed. The through-line: **fight for the EIA track, use the window, and be ready for court**.

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## STEP 1: TARGET IDENTIFICATION

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You cannot fight what you have not precisely identified. Answer five questions, and write the answers in a shared document — this becomes the campaign's factual spine. In Sri Lanka, do this **immediately**, because both the comment window and the constitutional time limit are short.

### Core Questions You Must Answer

#### Question 1: What Exactly Will Be Destroyed?

Get the specifics: the exact location and extent, the project type and stage, and what is there now — **paddy land and home gardens, tanks and irrigation channels, streams and lagoons, wetland and mangrove, forest, reef and beach, and temples or sites of religious and cultural significance**. Obtain the **IEE or EIA report** and list every admitted impact with its page reference. Pay particular attention to **water** — tanks, channels, groundwater, and lagoons — and to **wetland and coastal** effects, which have generated the country's strongest jurisprudence.

#### Question 2: Who Has Decision-Making Power?

Identify precisely: (a) whether the project is a **prescribed project**; (b) whether it has been assigned an **IEE or an EIA** — the decisive question; (c) which agency has been designated the **PAA**, and whether **CEA concurrence** will be required; (d) whether the site is in the **coastal zone**, a protected area, or the **North Western Province**, since those statutes give **public comment rights on IEEs** that the principal Act does not; and (e) which **Divisional Secretariat and Pradeshiya Sabha** cover the site.

#### Question 3: What Specific Action Stops It?

A project can be stopped or reshaped at several points: a **classification changed from IEE to EIA**, unlocking public comment; **approval refused or conditioned** after objections and technical evaluation; a **public hearing** granted; **approval quashed** on a writ application; an **imminent infringement of fundamental rights declared** by the Supreme Court; or **works restrained** by interim order. Map them and pursue at least two in parallel.



## Question 4: When Is the Decision Final?

This question ends campaigns in Sri Lanka, so treat it first. The **public comment period is 30 days** from the newspaper notice — and because notices appear on different dates in the different language newspapers, **check each and work from the earliest**. A **request for a public hearing** must be made within that window to be useful. And most importantly: a **fundamental rights application to the Supreme Court must be filed within one month**, a period the Supreme Court in the Eppawala case measured **from when the petitioners became aware of the matter from a newspaper report**. A writ application to the Court of Appeal should likewise be brought **promptly**. Consult a lawyer the day you learn of the project.

## Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually and carefully: the proponent and any foreign partner or financier; whether the approving agency is also the sector's promoter; whether land was acquired or vested before the project became public; and what public money or state land is involved. Use public sources — the company registry, the gazette, land records, and the assessment report itself. Build a dated, sourced timeline, and route allegations properly rather than publishing unproven claims.

**Output of Step 1:** a one-page fact sheet with the project's exact description, whether it is on the IEE or EIA track, the PAA and whether CEA concurrence applies, the governing statute, every deadline including the comment window and the one-month constitutional limit, and the money map.

## Worked example: which lever is actually open

Suppose a large development is proposed beside a lagoon and wetland, with reclamation and access roads, and the community learns of it from a newspaper notice. Working the questions: **Q1** — the wetland, lagoon fisheries, and drainage of surrounding paddy land are affected, and the report admits reclamation. **Q2** — the decisive question is whether the project has been assigned an **EIA or an IEE**; if the latter, and the principal Act applies, there is **no public comment right**, and challenging the classification becomes the campaign. If the site lies in the **coastal zone**, however, the coastal statute gives a **comment right even on an IEE**. **Q3** — the live levers are: objections within the window if an EIA applies; a **written challenge to the classification** if it does not; a **request for a public hearing**; and, if approval issues, a **writ application** and, where fundamental rights are engaged, a **Supreme Court application** — invoking the **public trust duty** the Court of Appeal has recognised in exactly this kind of wetland case. **Q4** — you diarise the 30 days from the earliest newspaper notice, and the **one month** from the day you learned of it. **Q5** — the registry and gazette show the proponent and any vesting of land. In an afternoon you know that **the classification question and the calendar are the campaign**.

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## STEP 2: DOCUMENTATION

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Documentation in Sri Lanka serves three specific audiences: the **Technical Evaluation Committee** that will assess the report, the **Project Approving Agency** that must consider your comments and send them to the proponent for response, and — if it comes to it — a **court** applying the public trust doctrine. That shapes what you gather: technical enough to be taken seriously by an evaluation committee, and clear enough that a judge can see the harm and the procedural failure at once.

## The Three Documentation Layers

### LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the project. In a country where the comment window is 30 days, much of this must be gathered fast, so prioritise.

**Water first.** Document tanks, irrigation channels, streams, wells, lagoons and groundwater: location, condition, and the households and paddy tracts depending on them. Sri Lankan settlement and agriculture are organised around water, and this evidence is both the most persuasive and the quickest to gather.

**Wetland, coast and forest.** Document wetland extent, mangrove, beach, reef and forest cover, dated and located. Because the courts recognise a **public trust duty to protect environmentally sensitive areas**, establishing that the site is such an area is a legal act as much as an ecological one.

**Land and livelihoods.** Document paddy land, home gardens, fishing grounds and the households working them, with any

acquisition or vesting proposed.

**Cultural and religious sites.** Record temples, shrines, ancient irrigation works, and archaeological remains — in Eppawala an ancient irrigation system was central to the community's concerns, and such sites carry real weight.

**How to hold it.** Keep everything dated, located and backed up, held collectively so the campaign does not depend on one person's files.

## LAYER 2: REPORT AND PROCESS ANALYSIS

Show what the project would do, and whether the process has been properly run. Catalogue four things:

1. **Classification.** Is the project on the **IEE or EIA track**, and is that correct for its complexity and scale? If an IEE has been used for a project with complex environmental issues, say so — because this determines whether the public has any right to comment at all, it is the single most important analytical point in a Sri Lankan campaign.
2. **Terms of Reference.** Obtain them if you can. Do they cover the water body, the wetland, the downstream villages, the cumulative effect of other projects? Omissions in the Terms of Reference produce omissions in the report, and both are arguable.
3. **The report's contents and gaps.** Mine the IEE or EIA for admitted impacts with page references, and identify what is missing — alternatives not properly considered, **monitoring measures inadequately addressed**, which courts have specifically criticised, and cumulative impacts ignored.
4. **The process itself.** Record the **dates of the newspaper notices in each language**, where the report was actually available, whether copies could be obtained, whether the community could realistically access and understand it, whether a **hearing was requested and refused**, and whether comments were answered. These procedural facts are frequently the strongest material you will have.

**Get expert eyes on it.** A critique carries far more weight before a technical evaluation committee when a qualified professional has signed it. Sri Lankan universities, professional institutes, and environmental organisations can provide hydrologists, ecologists, and coastal specialists, and for wetland, lagoon, or coastal projects an independent assessment is often decisive.

## LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate environmental harm into human terms, because that is what supports a fundamental rights argument:

- **Health and water** — households whose drinking or irrigation water is affected, flooding and drainage effects, and pollution risk.
- **Livelihoods** — paddy yields, fishing catches, home garden produce, and tourism or small trade at risk, quantified per household where possible. The Eppawala petitioners were cultivators and landowners, and their occupations were central to the rights they invoked.
- **Community and culture** — displacement, loss of access to temple or shrine, damage to heritage.

Package this layer twice: a rigorous version in **English** for the PAA, the evaluation committee and any court, and a plain-language **Sinhala and Tamil** version for community meetings.

## How to Structure Your Documentation

- **Phase 1: Immediate (Days 1-10)** — the notice dates, the report itself, the classification question, and photographs of water, wetland, and land.
- **Phase 2: Objection (Days 10-30)** — the technical critique and the written objection, filed inside the window with the hearing request.
- **Phase 3: Human and economic (Months 2-3)** — quantify the losses for any court application.
- **Phase 4: Ongoing** — conditions monitoring if approval issues, and a dated photographic record of works.

## Common Documentation Pitfalls (What Fails)

- **Missing the 30 days** — the single most common failure; check every language newspaper and work from the earliest date.
- **Not questioning the classification** — if an IEE is being used, that may be the whole case.
- **Not recording the notice dates and locations** — these procedural facts are evidence.
- **Only environmental data** — occupation, health, and livelihood evidence is what makes the rights argument concrete.
- **Unsigned technical claims** — get professional sign-off for anything the evaluation committee must weigh.



- **Discovering the project late** — and then assuming it is too late; the one-month constitutional clock may run from your awareness, so take advice immediately.

## Documentation Budget Breakdown (LKR)

| Item                                | Low (volunteer/pro-bono) | Higher (commissioned) |
|-------------------------------------|--------------------------|-----------------------|
| Copies of the report and notices    | modest                   | modest                |
| Photography, mapping, field records | minimal                  | modest                |
| Expert/academic review              | often free               | moderate              |
| Water or coastal testing            | modest                   | moderate              |
| Legal advice and court filing       | often supported          | moderate              |
| Translation and printing            | modest                   | modest                |

Most of this can be done cheaply and fast, suiting a 30-day window. Spend where it counts: **professional sign-off** on the critique, and **legal advice within days**.

## WHAT TO GATHER, AND WHERE TO FIND IT

Most of what decides a Sri Lankan case is obtainable, and much of it is deliberately placed where the public can reach it. The job is knowing where to go, fast.

**The Project Approving Agency.** The **IEE or EIA report**, the **Terms of Reference**, the notice and its dates, the **Technical Evaluation Committee's** composition and recommendations where obtainable, and the approval with its **conditions**.

**The deposit locations.** By design, the report is kept for public inspection at the **CEA library**, the relevant **Divisional Secretariat**, and the **Pradeshiya Sabha**, and the public may **obtain copies on payment of copying charges** — so a copy is a right, not a favour. Go in person, ask for the file, and keep the receipt.

**The newspapers.** Collect the **notices in Sinhala, Tamil and English**, with their dates, because the comment period runs from publication and the dates commonly differ. These clippings are evidence.

**The CEA.** Its concurrence where the PAA is another agency, protection licences, and enforcement records.

**Sector authorities.** Coast conservation for coastal projects, wildlife and forest authorities for protected areas, irrigation authorities for tanks and channels, and the local authority for construction.

**Land and gazette records.** Vesting or acquisition of land, gazetted boundaries of sensitive areas, and gazette publication of approvals.

**How to force a document open.** Sri Lanka has a **Right to Information Act**, with designated information officers in public authorities, statutory response periods, and an appeal route to the **Right to Information Commission**. This is a genuinely effective tool for obtaining Terms of Reference, evaluation records, and correspondence that are not on public deposit, and the template at Section 8E uses it.

**Free and low-cost help.** Sri Lanka has environmental organisations with decades of litigation experience — including the organisations behind the landmark public trust cases — alongside university researchers and professional institutes.

**Approaching one of them within days is the highest-value single step**, because they know the classification rules, the deadlines, and the courts.

**Tie it to the map.** The dots and layers here are your starting index — a mapped project points you to the approving agency and the sector regulator, and the local-ally entries point you to the organisations and lawyers already working nearby.

## STEP 3: BUILDING LOCAL OPPOSITION

## Critical Insight About Organizing

In Sri Lanka, organising has to be **fast and legally literate**, because the openings are narrow and time-bound. A community that can, within a month, produce a volume of substantive written objections, a request for a public hearing, and a credible set of petitioners for a court application is in a strong position. One that spends that month meeting and deliberating, however genuine its concerns, will find both the comment window and the constitutional time limit gone.

Three principles carry special weight here: **speed and the calendar** (everything is organised around the 30-day window and the one-month limit); **credible petitioners** (the Eppawala petitioners were residents, cultivators, landowners and a temple's chief monk — people whose occupations and property connected them directly to the harm, which is what grounded their rights); and **breadth across communities and beliefs** (Sri Lanka's environmental campaigns have drawn strength from temple, church, mosque and kovil alongside farmer organisations and fisher societies).

### PHASE 1: FOUNDATION (Days 1-10)

**Step 1a: Start with the most affected — and start the clock.** Reach the households whose water, land, fishing, or homes are at stake, and on day one **record the newspaper notice dates** and obtain the report. Note who among the community are cultivators, landowners, fishers, or custodians of a religious site, since these are the people whose rights a court application will rest on.

**Step 1b: Affinity groups by concern.** Let people join through what they care about — water and tanks, paddy land, fishing and the lagoon, flooding, the temple, health. Farmer organisations and fisher societies are ready-made structures.

**Step 1c: Contact an environmental organisation and a lawyer within days.** This is not something to leave until later. Sri Lanka's environmental organisations know immediately whether the project should be on the EIA track, what the deadlines are, and whether a fundamental rights application is available — and the constitutional clock may already be running.

### PHASE 2: PUBLIC LAUNCH (Days 10-30)

**Step 2a: Community meeting with a deadline.** Hold a meeting framed explicitly around the window: what the report says, what is at stake, and that objections must be in by a specific date. Bring the report, the maps, and a simple written objection template people can adapt.

**Step 2b: Mass written objections.** Coordinate a volume of **individual, substantive written objections** to the PAA within the 30 days, each raising specific matters rather than a form of words repeated. Volume matters, but so does substance, because comments are **sent to the proponent for response** and a specific point demands a specific answer.

**Step 2c: Request a public hearing, in writing.** Because a hearing is **discretionary**, it must be asked for, with reasons — the extent of public concern, the number of objections, the sensitivity of the area (Section 8C).

**Step 2d: Challenge the classification if it is an IEE.** Where the project has been routed through an IEE and the principal Act applies, write immediately to the PAA and the CEA arguing that its complexity requires an **EIA**, and therefore public comment (Section 8D). This is often the highest-value letter in the campaign.

### PHASE 3: COALITION EXPANSION (Months 1-4)

**Step 3a: Broaden the alliance.** Bring in neighbouring villages and downstream communities, farmer organisations and fisher societies, temple, church, mosque and kovil, professional bodies and academics, the local authority and Divisional Secretariat, and national environmental organisations.

**Step 3b: Coalition agreements.** Agree who the named petitioners will be if a court application follows, who instructs counsel, who holds the documents, and who speaks publicly. In Sri Lanka the choice of petitioners is a legal question: people whose **occupation, property, or use** is affected make the strongest applicants.

**Step 3c: Prepare the court file as you go.** While objecting, assemble what a petition needs — notices and dates, the report, your objections and any response, evidence of harm, and the professional critique. If approval issues, you may have very little time.

### PHASE 4: SUSTAINED PRESSURE (Months 2-12)

**Step 4a: Escalate to the courts if approval issues.** With counsel, consider a **writ application** in the Court of Appeal against the approval, or a **fundamental rights application** in the Supreme Court where rights are engaged —

remembering the **one-month** limit and seeking interim relief where works are imminent.

**Step 4b: Media and political pressure (ongoing).** National coverage of environmental disputes is well established, and peaceful campaigning — meetings, petitions, signature campaigns, demonstrations — is common. Keep everything lawful and orderly, and take advice before actions at the site.

**Step 4c: Monitor conditions.** Where approval issues with conditions, obtain them and monitor compliance; breaches are an enforcement route and evidence for later.

## Worked example: a community that unlocks the strong levers

A village beside a lagoon learns from a newspaper notice that a large project has been proposed, with reclamation of part of the wetland. Anger rises and a meeting is called for the following month — which, if left there, would waste the entire window. What converts the anger into force happens differently. First, two residents go the same week to the **Divisional Secretariat and the Pradeshiya Sabha**, inspect the deposited report, and **pay for copies**, while others collect the **notices in all three languages and record the dates** — establishing exactly when the 30 days end. Second, they discover the project has been routed through an **IEE**, and immediately write to the PAA and the CEA arguing that a project of this complexity requires an **EIA**, which would carry a public comment right — and separately check whether the site lies in the **coastal zone**, where an IEE would carry comment rights anyway. Third, they contact a **national environmental organisation**, which confirms the deadlines and begins preparing. Fourth, they organise **mass individual objections** with specific points on the lagoon fishery, drainage and flooding, and the wetland's status, and formally **request a public hearing**. Fifth, they identify **petitioners** — fishers, paddy landowners, and the temple — whose occupations and property connect them directly to the harm, and assemble the court file as they go. When approval issues, the application is filed **within the month**, invoking the **public trust duty** to protect environmentally sensitive areas. The lesson generalises: **in Sri Lanka, the copies you obtain and the notice dates you record in week one are what make the objection, the hearing request, and the court application possible at all.**

## Opposition Building Budget: Year-Long Campaign (LKR)

Low. The recurring costs are copying charges for the report, travel to the Divisional Secretariat and to Colombo, printing objection templates and translations, meetings, and communications. Professional review is often provided free by academics or organisations, and litigation is frequently carried by environmental organisations. Keep transparent accounts, and reserve what you can for **expert evidence and legal filing**, which are where money genuinely changes outcomes here.

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## STEP 4: LEGAL CHALLENGES

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Sri Lanka's administrative process gives objectors a narrow opening and no appeal, while its courts give them an unusually strong doctrine. That asymmetry shapes everything: **use the administrative window fully, but build for court from day one**. Three tracks — the approval process, the constitutional courts, and enforcement.

### TRACK 1: THE APPROVAL PROCESS (the narrow front door)

- **Contest the classification.** Where a project with complex environmental issues has been routed through an **IEE**, write to the PAA and the CEA seeking its reclassification to an **EIA**. Under the principal Act an IEE carries **no public comment right**, so this letter may be the difference between having a voice and having none. Note that under the **Coast Conservation and Coastal Resource Management Act** and the **North Western Province Environmental Statute**, IEEs are open to public comment — so establish which statute governs.
- **Object within the 30 days.** Where an EIA is on public inspection, file substantive written objections within the window. Comments are **sent to the proponent for response**, so specific, evidenced points force specific answers and build the record.
- **Request a public hearing.** A hearing is at the PAA's discretion, exercisable where it considers it appropriate **in the public interest**; request it in writing, citing the volume of objections and the sensitivity of the site.
- **Address the Terms of Reference and the evaluation.** Where you can, make representations on the **Terms of Reference** and put technical material before the **Technical Evaluation Committee**, whose recommendation drives the decision.
- **Note the appeal asymmetry.** The statutory appeal to the **Secretary to the Ministry** is available to the **project proponent** where approval is refused. Objectors have no equivalent, which is why the next track exists.

## TRACK 2: THE CONSTITUTIONAL COURTS (the decisive route)

- **Fundamental rights application to the Supreme Court.** Where a project imminently infringes fundamental rights, affected residents may apply directly to the **Supreme Court**. The **Eppawala** case settled the key points: the Court has jurisdiction notwithstanding arguments that the State is the trustee of natural resources; residents whose occupations and property are affected **have standing**; they are **not disqualified because the matter is public interest litigation**; **several petitioners may join** one application on the same circumstances; and the application is in time if filed **within one month of becoming aware** — in that case, from a newspaper report.
- **The doctrines you can invoke.** **Public trust, sustainable development**, and **intergenerational equity**, all applied by the Supreme Court to natural resources; and the **public trust duty of the State to protect environmentally sensitive areas**, recognised by the Court of Appeal in wetland litigation.
- **Writ application to the Court of Appeal.** To quash an unlawful approval, compel a public authority to perform its duty, or restrain works — the standard route where the complaint is administrative illegality rather than a rights infringement. Seek **interim relief** where clearing, filling, or construction is imminent, because these harms are irreversible.
- **Move fast.** The **one-month** limit for a fundamental rights application, and the requirement of promptness in writ applications, mean the day you learn of the decision is the day to instruct counsel.

## TRACK 3: ENFORCEMENT AND CONDITIONS

- **Conditions.** Approvals carry conditions; obtain them and monitor compliance. Breach is both an enforcement matter for the CEA and evidence for a court.
- **Licences and standards.** Protection licensing and pollution standards operate separately from project approval, and complaints there can bring inspection and action.
- **Sector permits.** Coastal, wildlife, forest and local permissions each carry their own requirements and vulnerabilities.

## The three legal challenge types

### TYPE 1: THE APPROVAL PROCESS (the narrow front door)

Classification challenge, objections in the 30-day window, hearing request, and representations to the evaluation committee.

### TYPE 2: THE CONSTITUTIONAL COURTS (the decisive route)

Fundamental rights application to the Supreme Court and writ application to the Court of Appeal, with interim relief and the public trust doctrine.

### TYPE 3: ENFORCEMENT AND CONDITIONS

Condition monitoring, licensing complaints, and sector permits.

## Legal Strategy Decision Tree

1. **Is it on the IEE track under the principal Act?** → Challenge the classification immediately; otherwise you have no comment right.
2. **Is an EIA on public inspection?** → File substantive objections within **30 days** and request a **hearing**.
3. **Is the site coastal or in the North Western Province?** → Check the governing statute; you may have comment rights on an IEE.
4. **Has approval issued?** → Instruct counsel at once: **writ** in the Court of Appeal, and a **fundamental rights application** within **one month** where rights are engaged.
5. **Are works imminent?** → Seek **interim relief**, because filling, clearing and construction cannot be undone.

## Litigation Success Factors

Speed above all; petitioners whose **occupation, property, or use** connects them to the harm; a documented procedural defect — wrong track, defective notice, unanswered comments, refused hearing; evidence that the area is **environmentally sensitive**, engaging the public trust duty; professional technical support; and interim relief sought at the outset.

## What to Avoid: Legal Failures

Letting the 30 days pass while deliberating; accepting an IEE classification without challenge; failing to record the notice dates; assuming you can appeal an approval administratively — you cannot; missing the **one-month** constitutional limit; and filing without evidence that connects named petitioners to concrete harm.

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## TURNING YOUR EVIDENCE INTO ARGUMENTS

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Evidence only counts when aimed at a specific ground. Here is how the records you gathered map onto the arguments that most often work in Sri Lanka.

**A complex project routed through an IEE → reclassification; public comment unlocked (often the whole case).** Feed it with: the project's true scale, its impacts, and the complexity the report itself concedes.

**Defective notice or inaccessible report → procedural illegality.** Feed it with: the notice dates in each language, where the report was actually available, and evidence that the affected community could not realistically access it.

**Objections unanswered, or a hearing refused despite substantial public concern → failure to consider; improper exercise of discretion.** Feed it with: your filed objections, the absence of response, and the volume and substance of public concern.

**Project affecting a wetland, lagoon, coast, or other sensitive area → the State's public trust duty.** Feed it with: the ecological status of the area and the harm proposed — the ground on which the Court of Appeal acted in wetland litigation.

**Harm to occupation, land, water, or fishing → fundamental rights.** Feed it with: named residents, what they do, what they own or use, and precisely how the project will affect it — the structure that succeeded in Eppawala.

**Inadequate monitoring or mitigation in the report → deficient assessment.** Feed it with: the specific gaps, professionally reviewed; courts have criticised assessments on exactly this basis.

**Non-renewable resource or irreversible loss → intergenerational equity.** Feed it with: the permanence of the loss and the interests of future generations.

The pattern: **lead with the procedural defect and the sensitivity of the place**, connect named people to concrete harm, and move within the time limits.

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## STEP 5: MEDIA STRATEGY

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Media matters in Sri Lanka because environmental disputes are followed nationally, because the **30-day window depends on people knowing the project exists**, and because coverage is often how a village reaches the organisations that can litigate for it.

### How Journalists Actually Work

Reporters need a hook, a human face, a conflict, and a document. Hand them the report page admitting the impact, the notice with its date, a named farmer or fisher whose livelihood is at stake, a photograph of the lagoon or paddy tract, and the deadline. Make it easy, and never give a fact you cannot stand behind.

### The Newsworthiness Formula

Local stakes + a credible threat + a documented procedural failure + a David-and-Goliath frame + a strong image = coverage. Three angles reliably travel: **wetlands, lagoons and coastal reclamation, water and paddy land, and a project approved with the public shut out** — the last being particularly potent given the IEE gap.

### Know the Outlets That Cover This Beat

Map the national newspapers in **Sinhala, Tamil and English** and their environment reporters, the television channels,

online outlets covering environmental disputes, and regional correspondents. The statutory notices appear in these papers, so environment desks are already watching them.

## Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable contact. One trusted relationship beats a dozen releases. Offer a site visit and access to residents, and be scrupulously accurate — one overstatement is used to dismiss the rest.

## Why media matters even when it doesn't make the front page

Coverage reaches the academic who will review the report, the organisation that will bring the application, and the professional body that will lend weight before the evaluation committee. It also spreads word of the **deadline**, which in a system that notifies by newspaper is itself a public service.

## Sample Media Timeline

Launch with the notice and the deadline; refresh at each milestone — the classification challenge, the volume of objections filed, the hearing request and its answer, the decision, the court filing, and any interim order.

## Media Measurement

Track coverage, but measure what matters: whether objections arrive in volume, whether a hearing is granted, whether the classification is revisited, whether an organisation takes the case, and whether works have stopped.

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## EMAILS & LETTERS

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Ready-to-adapt templates. Keep them factual, dated, and sourced. Deliver important ones by hand to the agency's registry and keep a stamped copy, or by registered post — proof of filing decides cases where a 30-day window is involved. Have a lawyer review anything heading to court.

### 8A. Email to a reporter (story pitch)

**Subject:** [Divisional Secretariat area, District]: [project] beside [lagoon/wetland/tank] — objections close [date]  
Dear [name],

A notice published on [date] in [newspaper] invites public comment on the [EIA] for [project] at [location]. The report itself admits [specific impact, quoted, with page number], including effects on [the lagoon fishery / paddy tract / drinking water] on which [number] families depend.

[Where relevant: the project has been processed as an **IEE**, which under the National Environmental Act carries **no public right of comment** — we have written asking that it be reclassified as an EIA.]

Objections close on **[date]**. We have asked the approving agency for a **public hearing**. I can take you to the site and connect you with affected farmers and fishers. Could we speak this week?

[Name] · [Community organisation] · [phone] · [email]

### 8B. Written objection within the 30-day period

**To: The [Project Approving Agency], copy: the Chairman, Central Environmental Authority Subject: Objection to the Environmental Impact Assessment for [project] — notice published [dates]**

I am [name], of [address], a [cultivator / fisher / landowner / resident] of [village]. I object to the approval of the above project on the following grounds:

1. **Water.** [The project affects [tank/channel/stream/lagoon], from which my household and [number] others take water for [drinking/irrigation]; the report addresses this at page [x] but does not assess [specific omission].]
2. **Land and livelihood.** [My [paddy land / fishing ground / home garden] at [location] will be affected as follows.]
3. **Sensitive area.** [The site includes/adjoins [wetland/mangrove/lagoon/forest], an environmentally sensitive area.]



4. **Cumulative and downstream effects.** [Other projects/activities in the same [basin/lagoon] are not assessed together.]
5. **Mitigation and monitoring.** [The report's monitoring measures are inadequate because [reason].]

I request that approval be **refused**, and that I be informed of the decision and of the proponent's response to this objection.

[Signature, name, address, date. Keep a stamped copy.]

## 8C. Request for a public hearing

**To: The [Project Approving Agency] Subject: Request for a public hearing under the National Environmental Act — [project]**

We, the undersigned residents of [villages], request that a **public hearing** be held in respect of the above project, which the approving agency may hold where it considers it appropriate in the public interest.

We submit that a hearing is warranted because: (i) [number] written objections have been submitted; (ii) the project affects [wetland/lagoon/tank/coastal area], an environmentally sensitive area; (iii) [number] households depend directly on the resources affected; and (iv) many affected residents are not able to engage effectively with a technical report in writing and should be heard orally, in [Sinhala/Tamil].

We request that the hearing be held **in [locality]**, in [language(s)], and that we be informed of the date.

[Signatures, villages, date]

## 8D. Letter challenging an IEE classification

**To: The [Project Approving Agency] and the Chairman, Central Environmental Authority Subject: Request that [project] be subjected to an Environmental Impact Assessment rather than an Initial Environmental Examination**

We understand that [project] at [location] is being processed on the basis of an **Initial Environmental Examination**.

We respectfully submit that this project involves complex environmental issues and therefore requires an **Environmental Impact Assessment**, because: [scale and extent]; [effects on [wetland/lagoon/tank/coastal zone/forest]]; [displacement or acquisition of land]; [cumulative effects with [other projects]]; and [irreversibility of the proposed [reclamation/clearing/extraction]].

We note that under the National Environmental Act an IEE is not opened for public inspection and comment, with the result that the residents most affected would have **no opportunity to be heard** on a project of this significance.

We request reclassification, and that the report be placed on public inspection accordingly.

[Signatories, villages, date]

## 8E. Right to Information request

**To: The Information Officer, [Project Approving Agency / Central Environmental Authority / Divisional Secretariat] Subject: Request under the Right to Information Act**

I request copies of the following: 1. the **Terms of Reference** issued for the [IEE/EIA] for [project]; 2. the **preliminary information** submitted by the project proponent and the decision on classification; 3. copies of the **public notices** published, with dates and publications; 4. the **Technical Evaluation Committee** composition and its recommendations; 5. the **approval and its conditions**, and the concurrence of the CEA where applicable; 6. the public comments received and the proponent's responses.

I enclose the prescribed fee and request a reply within the statutory period, failing which I shall appeal to the designated officer and thereafter to the Right to Information Commission.

[Name, address, date]

## 8F. Request to an environmental organisation for legal support

**Subject: Request for assistance — [project] at [location], objections close [date]**

Dear [organisation],

The residents of [villages] face [project] at [location]. We have: the notice dates in [languages]; a copy of the [IEE/EIA] obtained from the [Divisional Secretariat / Pradeshiya Sabha]; photographs of [the lagoon/tank/paddy land]; and [number] written objections filed on [date]. [Where relevant: the project is proceeding on an IEE and we have written seeking reclassification.]

We would be grateful for your advice on (i) whether the classification can be challenged, (ii) whether a **fundamental rights application** or a **writ application** is available to us, and (iii) the applicable time limits, noting that we first became aware of the project on [date].

[Name, organisation, contact]

## 8G. Press release (effective)

**FOR IMMEDIATE RELEASE — [date]**

**Residents of [area] object to [project] beside [lagoon/tank/wetland]; objections close [date]**

Residents of [villages] have filed [number] objections to [project] at [location], following the notice published on [date]. The [EIA] itself admits [quoted impact, page reference]. The project affects [the lagoon fishery / paddy land / drinking water] on which [number] families depend.

"[Short, human quote from an affected farmer or fisher]," said [name]. The residents have also requested a **public hearing**. [Where relevant: they have asked that the project be reclassified from an IEE to an EIA, since an IEE carries no public right of comment.]

**Contact:** [name, phone]. The report, the notices, photographs and interviews are available on request.

## 8H. Instruction to counsel (court application)

**Subject: Proposed application concerning [project], approval dated [date]**

Dear [counsel],

Approval for [project] at [location] was granted by [PAA] on [date]; we became aware of it on [date]. We instruct you to advise on and, if appropriate, file (i) a **writ application** in the Court of Appeal to quash the approval and restrain works, and (ii) a **fundamental rights application** in the Supreme Court, noting the **one-month** limit.

Proposed petitioners: [named residents], being [cultivators / fishers / landowners / the incumbent of [temple]] whose [land / occupation / water source] is directly affected.

We can provide: the notices and dates; the [IEE/EIA]; our objections dated [date] and any response; our request for a hearing and its outcome; photographs and mapping; and a technical review by [expert]. We ask you to consider grounds including the classification, defective notice, failure to consider objections, refusal of a hearing, and the **public trust duty** to protect environmentally sensitive areas.

Please advise urgently on **interim relief**, as works are expected to begin on [date].

[Date, signature]

## Important Caveat

Templates are starting points. Adapt every one to your real facts, cite the actual notice dates and page references, and have counsel review anything heading to court. **The calendar decides outcomes here:** objections must be filed within the **30-day** window measured from the newspaper notice — check every language edition and work from the earliest — and a fundamental rights application must be filed within **one month**, a period the Supreme Court has measured from the petitioners' awareness. Keep stamped copies of everything, and keep public statements to documented facts.

## IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can run a long campaign — and in Sri Lanka the openings are so time-bound that a focused fortnight is worth more than a diffuse year. In rough order of impact for the effort:

1. **Record the notice dates in every language, and diarise the deadline.** The 30 days run from publication, the

dates differ between the Sinhala, Tamil and English papers, and the whole opportunity turns on this. Work from the earliest.

2. **Get the report.** Go to the **Divisional Secretariat**, the **Pradeshiya Sabha**, or the CEA library, inspect it, and **pay for a copy** — you are entitled to one. Keep the receipt.
3. **Check whether it is an IEE, and challenge it if so.** Under the National Environmental Act an IEE carries **no public comment right**, so a letter arguing that a complex project requires an **EIA** (Section 8D) may be the single most valuable thing you send. Check too whether the site is coastal or in the North Western Province, where IEEs do carry comment rights.
4. **File a substantive written objection inside the window** (Section 8B), and keep a stamped copy. Comments go to the proponent for response, so specific points force specific answers.
5. **Request a public hearing in writing** (Section 8C) — it is discretionary, so it must be asked for.
6. **Contact an environmental organisation and a lawyer now**, not after approval (Section 8F) — because the **one-month** constitutional limit may run from the day you learned of the matter.
7. **Photograph the water, the wetland, and the land, dated**, and send one accurate email to a reporter (Section 8A) with the deadline in it.

If you do only the first four, you have preserved the deadline, obtained the document, contested the route that would have silenced you, and put a substantive objection on the record. That is a real contribution, not a token one.

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## WHEN THE SYSTEM IS TILTED

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Sri Lanka's tilt is procedural rather than doctrinal: the courts have given communities strong principles, while the administrative process gives them a narrow, discretionary, and sometimes non-existent opening.

### What This Tilt DOES (and DOESN'T DO)

The tilt means an **IEE carries no public comment right** under the principal Act, so significant projects can be approved with little shared publicly; **hearings are discretionary**; the **appeal belongs to the developer**; notice is by **newspaper**, which reaches town readers more reliably than affected villages; approving agencies are often the promoters of the sector they assess; and proposals to widen public participation have not been carried through. It does **not** close the doors: where an EIA applies there is a **mandatory 30-day comment right** with comments **sent to the proponent for response**; the classification itself can be challenged; **coastal and North Western Province projects carry comment rights even on IEEs**; the **Supreme Court** has confirmed that public-interest petitioners are not disqualified and that the one-month clock runs from awareness; and the **public trust doctrine** is settled law that both apex courts have applied.

### Reading Your Tilt: Responsive, Mixed, Entrenched

- **EIA track, sensitive area, community organised early.** The strongest position: you have a comment right, a hearing to request, a procedural record to build, and doctrines that fit.
- **Mixed.** An EIA exists but notice was poor, or the site's sensitivity is contested. Weight shifts to procedural defects, the hearing request, professional evidence, and a writ application.
- **Entrenched.** An IEE-track project under the principal Act, or an approval already granted and works begun. Assume the administrative route offers little; concentrate on the classification challenge, immediate legal advice on the time limits, and interim relief — and be realistic that a late challenge is much harder.

### Documented Sri Lankan Dynamics

The record shows both the strength and the gap. **The apex courts have gone a long way** — in the **Eppawala** case the Supreme Court held it had jurisdiction over an alleged infringement notwithstanding the argument that the Government, not the court, was trustee of the country's natural resources; that residents engaged in cultivation and owning land there **had standing** and were **not disqualified because the case was public interest litigation**; that petitioners could **join in a single application**; and that the petition was **not time-barred**, having been filed **within one month of the petitioners becoming aware from a newspaper report**. Applying **sustainable development, public trust and intergenerational equity** — and observing that a non-renewable resource extracted on those terms would not serve future generations — it declared an **imminent infringement** of rights. **The doctrine has been carried forward** — the Court of Appeal, in litigation over the filling of the Muthurajawela wetlands, held that protection of environmentally sensitive areas is a **public trust duty of the State**. **The assessment process has been criticised in court** — including for inadequate attention to monitoring measures. **But the participation gap persists** — the IEE route carries no public comment right under the principal Act, and reform commitments to extend public comment and accountability to

both processes were not carried through. The lesson: **the courts are open; the administrative door is narrow; act fast and aim for both.**

## Assessment Framework — Determine Your Situation

Ask: is the project on the EIA or IEE track, and under which statute? When exactly were the notices published, in each language? Have we obtained the report? Is the site a wetland, lagoon, coastal zone, tank catchment, or other sensitive area? Who among us are cultivators, fishers, landowners, or custodians of a religious site? When did we first become aware — and how long is left on the one-month clock? Can we reach an environmental organisation this week? The answers tell you whether to fight for the EIA track, to object and request a hearing, or to move directly to court.

## Direct Action: Factual Information (Descriptive, Not Prescriptive)

Sri Lankan environmental campaigns have used public meetings, signature campaigns, petitions to authorities and to Parliament, temple and community gatherings, and peaceful demonstrations, and these are effective — particularly when paired with a well-founded objection and litigation. Public assembly is lawful but subject to legal requirements and, at times, to restrictions; take advice, keep everything peaceful and orderly, and avoid obstruction at project sites. The strategic point is that in Sri Lanka the **courtroom is the sharper instrument**, and public campaigning works best when it supports and publicises the legal case rather than substituting for it.

## Honest Assessment

Tilted fights are harder, and Sri Lanka's difficulty is that the opening may be narrow or, on the IEE track, entirely absent. But "harder" is not "hopeless": Sri Lankan communities have stopped a major foreign mining agreement at the Supreme Court, established a public trust doctrine cited far beyond the country, and had wetland filling addressed as a breach of the State's duty. Concentrate force where the tilt is weakest — **the classification, the calendar, and the courts** — and get expert help in the first week rather than the third month.

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# WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

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Most bad decisions are lawful decisions you disagree with. But capture is real, and in Sri Lanka it tends to be structural rather than crude. Read your situation actor by actor, and publish documents rather than accusations.

**The approving agency's dual role.** The most consequential structural problem: the **PAA is frequently the line agency that promotes the sector** it is assessing, so the body deciding whether a project should proceed may be institutionally invested in it proceeding. Signs: a classification that minimises process, terms of reference that omit the obvious, an evaluation that dismisses substantiated objections. Lever: the requirement of **CEA concurrence** where the PAA is not the CEA, and judicial review.

**The classification decision.** Because an IEE carries no public comment right, routing a project through an IEE is the single most effective way to exclude the public. Signs: a large or sensitive project treated as lacking complex environmental issues. Lever: the reclassification letter and, if refused, the courts.

**Notice practice.** Notice by newspaper, sometimes with different dates in different languages and with the report deposited far from the affected village, can be technically compliant and practically exclusionary. Lever: record the dates and the deposit locations; this is evidence of a defective process.

**The consultants.** Assessments are commissioned and paid for by proponents. Signs: omitted alternatives, thin monitoring provisions — a matter courts have criticised — and silence on cumulative effects. Lever: independent professional review before the evaluation committee.

**Land and state resources.** Watch for vesting or acquisition of state land, or leases granted before a project becomes public. Lever: gazette and land records.

**How to act on it, safely.** Document from the file, the gazette, and the notices before you speak. Route genuine allegations to the **Auditor-General**, the relevant parliamentary oversight body, and — where a public officer's conduct is in question — the appropriate authority, and above all into your **objection and your court papers**, where they are protected and consequential. Do not publish unproven accusations about named individuals: it exposes the campaign

legally and distracts from the procedural failures that are your strongest ground.

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## INTEGRATION & TIMELINE

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The five steps run in parallel and reinforce each other. In Sri Lanka the timeline is unusually front-loaded: almost everything that decides the outcome happens in the **first month**, and the rest of the campaign is litigation and monitoring.

### Realistic 12-Month Campaign Timeline

**Days 1-10 (The clock starts).** - Record the notice dates in **Sinhala, Tamil and English** and diarise the deadline from the earliest. - Obtain the **IEE or EIA** from the Divisional Secretariat, the Pradeshiya Sabha, or the CEA library, paying the copying charge. - Establish the **classification** and the **governing statute**, and identify the **PAA**. - Photograph the **water, wetland, land and coast**, dated. - **Contact an environmental organisation and a lawyer** — the constitutional clock may already be running.

**Days 10-30 (The window).** - File the **classification challenge** if the project is on the IEE track (Section 8D). - Organise and file **mass substantive written objections** (Section 8B), keeping stamped copies. - File the **request for a public hearing** (Section 8C). - Obtain professional review of the report's technical weaknesses. - Hold the community meeting framed around the deadline, and launch media carrying the date (Steps 3 and 5).

**Months 2-4 (Decision and preparation).** - File an **RTI request** for the Terms of Reference, evaluation records, and responses (Section 8E). - Identify **petitioners** whose occupation, land, water use, or custodianship connects them to the harm. - Assemble the court file: notices, report, objections, responses, evidence, expert review. - Press for the hearing; make representations to the technical evaluation where possible.

**Months 3-6 (If approval issues).** - Instruct counsel **immediately** — the **one-month** limit for a fundamental rights application runs from awareness, and a writ application must be prompt (Section 8H). - Seek **interim relief** where filling, clearing, or construction is imminent. - Plead the **public trust duty**, the procedural defects, and the fundamental rights of named petitioners.

**Months 6-12 (Litigation and monitoring).** - Support the litigation; sustain media at each stage. - If approval stands, obtain the **conditions** and monitor compliance, reporting breaches. - Keep the community organised: conditions monitoring is a long job, and a further application may become available if circumstances change.

**Beyond 12 months.** - Litigation can run for years; keep the archive and the petitioner group intact. - Watch for **variations, extensions, and new phases**, each of which may reopen the process — and note that approvals are time-limited, so renewal is another moment of scrutiny.

### Warning Signs — Act Early

A notice appearing in a newspaper you do not usually read; survey teams, boundary markers, or soil testing; land being vested or acquired; a project announced publicly before any assessment is visible; talk of an "IEE" for a large project; earthmoving equipment arriving. Each is a trigger to **check the notices and obtain the report that day** — because in Sri Lanka the difference between a strong campaign and no campaign at all is usually a fortnight.

### Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: record the notice dates immediately; obtain the report; establish and if necessary **challenge the classification**; file substantive objections inside the window; request a hearing in writing; choose petitioners whose occupation and property connect them to the harm; instruct lawyers within days, not months; seek interim relief; and plead the **public trust duty**. Losing campaigns: hold a meeting next month; assume they can appeal an approval administratively; accept the IEE route without challenge; and discover the one-month limit after it has expired.

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## FINAL ASSESSMENT

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### Real Outcomes: What Winning Looks Like

"Winning" in Sri Lanka takes several forms, and it is worth naming them so you recognise a win when you get one: - a project **reclassified from an IEE to an EIA**, which converts a closed process into one where the public must be heard; - **approval refused**, or granted with conditions strong enough to change the project; - a **public hearing granted**, and evidence heard on the record; - an **approval quashed** on a writ application, or **works restrained** by interim order; - an **imminent infringement of fundamental rights declared** by the Supreme Court, as in Eppawala, stopping an agreement outright; - a **public trust duty** recognised over a wetland, lagoon, or other sensitive area; - **conditions enforced** after approval; and - a **precedent** that other communities then use, which is how much of Sri Lanka's environmental law was built.

Sri Lankan communities and their lawyers have achieved every one of these.

## Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone. If you are inside the window and the site is sensitive, press hard — this is when your leverage is greatest. If the project is on the IEE track, the classification challenge is the campaign, and it is worth everything you have. If approval has issued, the only question that matters this week is the **time limit**, so get advice at once. If the limits have passed, shift to conditions monitoring, enforcement, and the next decision point — variations, extensions, and renewals all reopen scrutiny. Continuing is often right; but in Sri Lanka, delay is the single most expensive mistake.

## The Bottom Line

Sri Lanka's administrative process is narrow: an **IEE carries no public comment right** under the principal Act, **public hearings are discretionary**, the **appeal belongs to the developer**, and notice is by newspaper. But the country's courts have given communities some of the strongest environmental doctrine anywhere. Where an **EIA** applies, the report must be **open for public inspection and comment for a mandatory 30 days**, deposited at the CEA, the **Divisional Secretariat** and the **Pradeshiya Sabha**, with copies available and **comments sent to the proponent for response**; a **hearing may be requested**; the **CEA must concur** where another agency approves; and coastal and North Western Province projects carry **comment rights even on IEEs**. Above that, the **Supreme Court** in the Eppawala case held that residents whose occupations and land were affected had standing, were **not disqualified because the case was public interest litigation**, could join in one application, and were **in time when they filed within one month of learning of the matter from a newspaper** — and, applying **public trust, sustainable development and intergenerational equity**, declared an imminent infringement of their rights; the **Court of Appeal** has since held that protecting environmentally sensitive areas is a **public trust duty of the State**. Communities that record the notice dates the day they appear, obtain the report, challenge an IEE classification, file substantive objections inside the window, request a hearing in writing, choose petitioners whose land and livelihoods connect them to the harm, and instruct lawyers within days have stopped major projects, quashed approvals, and built the doctrine the next community will rely on. No single step wins; the combination does. Start today by finding the notice, noting its date, and asking for a copy of the report.